

Tax Invoice	
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Document No.	638003



INVOICE TO:	
Customer Name:	Velocity Fibre (Pty) Ltd 26 Centenary Road Lorraine Port Elizabeth 7130
VAT Number:	4340321753
Email:	invoice@velocityfibre.co.za;finance@velocityfibre.co.za

DELIVER TO:	
Ship to:	Velocity Fibre (Pty) Ltd
Telephone:	064 802 5064

STOCK CODE	DESCRIPTION	UNIT PRICE	UOM	QTY	AMOUNT
900R	900mm Dia x 900mm MD Telecom Manhole	6,830.00	ea	1.00	6,830.00

For banking details please contact :
Jacques@m4a.co.za | Tel +27 11 903 7023

30 Days Nett

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Co.Reg.No.: 2015/360106/07 | VAT Reg. No.: 4750170849
 Importers/Exporters Code 21201981
 Everite Pipes Factory Premises | (R550) Heidelberg Road | Klipriver
 Tel. No: +27 11 903 7023 Email: info@m4a.co.za

TERMS AND CONDITIONS

The sale of goods by the Seller (as defined herein) to the Purchaser (as defined herein) is subject to the following terms and conditions, and no other terms and conditions shall be applicable or binding on the Seller and the Purchaser unless agreed to in writing between the parties.

1. DEFINITIONS

- 1.1. "the Purchaser" shall mean the Seller's customer or customers as cited on the first page of this document.
- 1.2. "the Seller" shall mean Manholes 4 Africa (Pty) Ltd Registration number 2015/360106/07.
- 1.3. "Pro-forma invoice" shall mean the invoice sent to the Purchaser upon receipt by the Seller of an Order.
- 1.4. "Official Order" shall mean an Order placed by the Purchaser following the Purchaser's express, alternatively implied alternatively tacit acceptance of the terms of the Pro-forma invoice.
- 1.5. "Date of Statement" shall mean the monthly statement of the amount/s owing by the Purchaser to the Seller in terms of this contract.

2. THE ORDER

- 2.1. No agreement will come into existence until the Seller and the Purchaser have both accepted a request for a quotation as provided for herein below.
- 2.2. The Seller will, upon request by the Purchaser for a quotation, issue to the purchaser a Pro-forma invoice.
- 2.3. The Purchaser will be deemed to have accepted the quotation when it communicates (in any form) to the Seller its acceptance of the Pro-forma invoice which will then be deemed to be an Official Order, governed by the terms and conditions of this Agreement.
- 2.4. The terms and conditions contained herein shall bind the Seller and the Purchaser in all future contracts, agreements, tenders and quotations unless varied by both parties in writing.

3. DELIVERY

- 3.1. The Seller will use its best endeavors to effect delivery as soon as reasonably possible or within the period indicated by the Seller but the Seller will not be liable for a failure to perform or delays in delivery if performance is rendered impossible due to strikes, labour disputes, accidents, weather, breakdown of machinery or any other causes of whatsoever nature which are beyond the control of the Seller and which were not reasonably foreseeable at the time of entering into the contract.
- Any such delay in delivery shall not entitle the Purchaser to cancel any order or to refuse acceptance of the delivery at any time without the Seller's prior written consent.
- 3.2. All loading racks, pallets or other materials used or supplied by the Seller for the purpose of transportation of any goods shall remain the property of the Seller and the Seller reserves the right at any time to require the Purchaser to return such racks, pallets or other materials to the Seller or any third party nominated by the Seller.
- 3.3. The Purchaser shall not return goods for any reason without prior written agreement with the Seller.
- 3.4. Should the Seller agree to accept the return of any goods for credit, the Purchaser shall be liable to pay the Seller a handling charge of 10% of the invoiced price of the goods so returned.
- 3.5. No claim in respect of defective deliveries will be entertained by the Seller unless the Seller is notified in writing of such defective delivery on the documents (Proof of Delivery) presented to the Purchaser at delivery and returned to the Seller.

4. PAYMENT

- 4.1. Unless otherwise agreed, payment in full without deduction or set-off shall be due and payable within 30 (thirty) calendar days of the date of statement. Statements will be sent by the Seller to the Purchaser on the last day of the month that delivery is completed.
- 4.2. If the Purchaser fails to settle its indebtedness to the Seller within the given time, the Purchaser shall pay to the Seller interest at the South African prime lending rate at that point in time on such unpaid amount which shall accrue from the date of statement until the date upon which payment in full is made, provided however that nothing herein contained shall be interpreted as obliging the Seller to afford the Purchaser any such indulgence to effect payment after date of statement.
- 4.3. The Seller reserves the right at any time to refuse delivery should the Seller not be able to obtain satisfactory guarantees for the due and prompt payment to it of all monies which may be due.
- 4.4. Upon failure to comply with the conditions of payment, the Seller reserves the right to suspend any further deliveries or to require cash payments prior to those further deliveries or to cancel the sale.
- 4.5. A certificate under the hand of any manager of the Seller as to the existence and the amount of the Purchaser's indebtedness to the Seller at any time, as to the fact that such amount is due and payable, the amount of interest accrued thereon and as to any other act, matter or thing relating to the debtor's indebtedness to the Seller, shall be prima facie evidence of the contents and correctness thereof and of the amount of the Purchaser's indebtedness for the purposes of provisional sentence or summary judgement or any other proceedings against the purchaser in any competent court, and shall be valid as a liquid document for such purpose.
- It shall not be necessary to prove the appointment of the person signing such certificate and such certificate shall be binding on the Purchaser and shall be deemed to be sufficient particularly for the purpose of any action or other proceeding instituted by the Seller against the Purchaser.
- 4.6. No relaxation or indulgence granted to the Purchaser by the Seller at any time shall be deemed to be a waiver of any of the Seller's rights, and such relaxation or indulgence shall not be deemed a novation of any of the terms and conditions set out herein.
- 4.7. In the event of the Seller instructing attorneys regarding any breach by the purchaser of these conditions or to collect from the Purchaser any amount owing to the Seller, the Purchaser agrees to pay all costs on the scale as between attorney and own client, including collection commission.
- 4.8. The Seller will notify the Purchaser of any changes to its bank account details in writing. The notification will be in the form of a letter signed by the Seller accompanied by a bank account confirmation letter sent from the email address of the individual responsible for communicating with the Seller regarding invoices and payments, to the email address provided by the Purchaser in the Application form at item 6 or the email address utilized by the Purchaser for purposes of communicating with the Seller on a regular basis. The Seller will not be responsible for any losses suffered by the Purchaser as a result of any payment made into an account that has not been designated by the Seller in terms of this clause and the amount payable by the Purchaser will remain payable regardless.

5. OWNERSHIP AND RISK

- 5.1. Risk in and to the goods shall pass to the Purchaser upon the signing of the delivery note provided by the Seller to the Purchaser.
- 5.2. Ownership of all goods sold remains vested in the Seller until all monies owing to it have been paid in full. All goods whether affixed to immovable property or to other goods shall be deemed to remain moveable property. The Seller reserves the right to inform the end user or the owner of the premises in which any goods are installed to its claim to ownership.

6. THE PURCHASER

- 6.1. Agrees and acknowledges that in the event of;
 - 6.1.1. The Purchaser breaching any conditions contained in these conditions;
 - 6.1.2. The Purchaser failing to pay any amount due and payable on due date;
 - 6.1.3. The Purchaser suffering any civil judgement to be taken or entered against it;
 - 6.1.4. The Purchaser causing a notice of surrender of its estate to be published in terms of the Insolvency Act 24 of 1938 as amended;
 - 6.1.5. The Purchaser being placed under an order of provisional or final winding up, or provisional or final judicial management, the launching of business rescue proceedings or the passing of a resolution to commence business rescue proceedings, as the case may be; the Seller shall without detracting from any other remedies which may be available to it, be entitled to, without notice, summarily cancel the sale of any goods to the Purchaser and to repossess those goods sold and delivered, or to claim specific performance of all the Purchaser's obligations whether or not such obligations would otherwise then have fallen due for performance, in any event, without prejudice to the Seller's right to claim damages.

7. SELLERS LIABILITY

- 7.1. The Seller undertakes that goods supplied will conform to specification and/or requirements specifically agreed to by it in writing.
- 7.2. In the event of the goods not being in accordance with specifications, the Seller's liability shall be limited to the replacement of such goods only. The Seller will not be liable for any consequential loss whatsoever.
- 7.3. Should any cause beyond the control of the Seller prevent the performance of any of its obligations the Seller at its option shall be entitled to cancel or suspend performance of its obligations hereunder without being liable for any loss or damages, consequential or otherwise resulting from such cancellation or suspension.
- 7.4. In the event of the Purchaser incorrectly or inadvertently fixing, fitting or modifying the Seller's products any replacement warranty (if provided for) will fall away. The onus shall be on the Purchaser to obtain from the Seller fixing or fitting instruction manuals or literature should the Purchaser be in any doubt with regards thereto.

8. LIMITED WARRANTEE

- 8.1. Manholes4Africa (Pty) Ltd or any of its subsidiaries ("the Seller") warrants the products sold by them to the Purchaser to be free from defects in workmanship and materials, under normal use and conditions.

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 Importers/Exporters Code 21201981
 Everite Pipes Factory Premises | (R550) Heidelberg Road | Klipriver
 Tel. No: +27 11 903 7023 Email: info@m4a.co.za

8.2. The warranty shall not extend to products being defective due to:

8.2.1. Any adverse condition in the product resulting from normal wear and tear or any use for which the product was not intended.

8.2.2. Abnormal operating conditions.

8.2.3. Any condition in the product resulting from incorrect or inadequate maintenance or care.

8.2.4. Negligence, misuse or malicious damage.

8.2.5. Damage to the product incurred during transportation.

8.2.6. Accidents, operator errors or non-compliance with operating instructions and/or manuals.

8.2.7. Parts or accessories used and not supplied, recommended or manufactured by the Seller, which in the opinion of the Seller may be detrimental to the normal functioning of the products.

8.3. The Seller makes no express warranty or condition that is not stated in this Limited Warranty and it is agreed between the Seller and the Purchaser that the Seller does not provide any implied warranties or conditions, including any implied warranties of merchantability and fitness for a particular purpose, subject at all times to the applicable laws of South Africa.

8.4. Guarantee:

8.4.1. Each product sold by the Seller will come with a guarantee period specifically detailed to the Purchaser in the relevant document or as detailed on the Seller's website.

8.4.2. The Seller may at its option during the guarantee period repair any defects in material or workmanship or furnish a new, repaired or refurbished product of equal value in exchange without charge (except for a fee for shipping, handling, packing, return postage, and insurance which will be incurred by the purchaser).

8.4.3. Such repair or replacement is subject to verification of the defect or malfunction by the Seller and presentation of the proof of purchase.

8.4.4. Any claim in respect of the warranty by the Purchaser must be filed by the Purchaser to the Seller by email or by hand at the Seller's domicilium citandi et executandi as detailed herein below and is subject to the following procedure:

8.4.4.1. Upon delivery and prior to installation of the product, the product must be thoroughly inspected, and any defects must be notified to the Seller within 30 (thirty) calendar days of the delivery date.

8.4.4.2. The Seller will correct and make good any defects which may exist or develop, under normal and proper installation and use and within the guarantee period, which are due to material and workmanship defects and provided the Seller is notified within 30 (thirty) calendar days from such defects being discovered or reasonably ought to have been discovered.

8.4.4.3. The product guarantee is subject to the installation of the product strictly in accordance with the recommendations of installation available for each product.

8.4.5. The Seller reserve the following rights:

8.4.5.1. the right to specify that products be returned to the original warehouse for inspection or be inspected by a representative of the Seller in the field;

8.4.5.2. to require pictures of the defective products;

8.4.5.3. to require all original documentation in respect of the purchase of the defective products.

8.4.6. If the claim is accepted by the Seller, the defective product will be repaired, replaced or a credit will be issued.

8.5. Third Party Warranty:

8.5.1. All third-party products sold by the Seller that is incorporated in the Seller's product or sold with the seller's products will be subject to the product warranties of the third-party supplier and the Seller does not offer an extended warranty or additional support for these products.

8.6. Limitation of Liability

8.6.1. The Seller's liability regarding any defect in the product, any consequences whatsoever arising from a defective product, or the use of any product sold by the Seller (which includes any third-party product) is limited to the Seller's obligations contained in this Limited Warranty and the Seller will not be liable to the Purchaser or any other person for any indirect and/or consequential loss or damages, including loss of profits suffered as a result of the use of the product.

9. JURISDICTION

9.1. The Purchaser consents to the Jurisdiction of the Magistrate Court in terms of Section 45 of the Magistrate Court Act No. 32 of 1944 (as amended) having jurisdiction under section 28 of the said Act, notwithstanding that the claim by the Seller exceeds the normal jurisdiction of the Magistrate Court as to the amount. The Seller shall in its discretion be entitled to proceed against the Purchaser in any other Court of competent jurisdiction, notwithstanding the foregoing.

9.2. The Purchaser agrees that in the event of any dispute arising between the parties the Seller shall have the right to (but is not obligated to), refer such disputes to an arbitrator. The arbitrator shall have the widest possible powers, to dispense with any or all rules of Court for the purpose of such proceedings and to make such award against any or both parties as he in his sole discretion may deem fit and the arbitrator's award shall be final and binding on the parties and not be subject to appeal or review save in the event of dishonesty or gross negligence on the part of the arbitrator. Such arbitration procedure shall immediately suspend and replace any proceedings in Court arising from essentially the same cause of action. The arbitrator shall be appointed by the attorney of the Seller.

10. DOMICILIUM

10.1. The Purchaser hereby chooses as the domicilium citandi et executandi for all purposes in connection with or arising out of its contract with the Seller, the address as stated in the Application Form at item 10, to which this document is attached.

10.2. Both Parties must notify each other in writing of any changes to its domicilium citandi et executandi provided that such a notice is received by the addressee, at least seven (7) calendar days prior to such a change taking effect.

11. GENERAL

11.1. This agreement is governed by the laws of the Republic of South Africa.

11.2. The Seller will not be held responsible for goods ordered telephonically or otherwise and not in conformance with the procedure set out above.

11.3. No variation, modification, addition to, deletion from or consensual termination of any provision of this Agreement or consent to any departure therefrom shall in any way be of any force or effect unless confirmed in writing and signed by the Parties and then such variation, modification, addition to, deletion from, termination or consent shall be effective only in the specific instance and for the purpose and to the extent for which it was made or given.

11.4. The Purchaser hereby acknowledges that he/she or it understands that credit facilities may be revised or withdrawn by the Seller without notice and in the Seller's absolute discretion.

11.5. All illustrations, descriptive matter, drawings, catalogues, advertisements pamphlets and the like accompanying any quotation or in the Purchaser's hands before or after the Purchaser places an order, are supplied in good faith for general information only and do not form part of the contract